

SUN CITY HILTON HEAD

*Custom Home Design Guidelines
for Riverbend Neighborhood*



Table of Contents

1.0	VISION AND ARCHITECTURAL REVIEW	
1.1	Architectural Review	1
1.2	Community Vision and Design Philosophy	1
1.3	Design Guidelines Objectives	2
1.4	Tree Protection	2
2.0	SITE DEVELOPMENT GUIDELINES	
2.1	Building Envelopes	3
2.2	Custom Home Lot Zones	3
2.3	Site Clearing	3
2.3.1	Alteration or Construction Adjacent to Salt Marsh Edge	4
2.4	Site Grading and Drainage	4
3.0	ARCHITECTURAL GUIDELINES	
3.1	Architectural Character	4
3.2	Size	5
3.3	Height	5
3.4	Massing	5
3.5	Window and Door Openings	5
3.6	Shutters, Window Boxes and Mailboxes	5
3.7	Foundations	5
3.8	Decks, Balconies and Exterior Stairways	5
3.9	Exterior Stairs and Railing	6
3.10	Solar Heating and Power Generation Panels	6
3.10.1	Roofs	7
3.11	Building Materials	7
3.12	Gutters and Downspouts	7
3.13	Color	8
3.14	Service Yard, Trash, and Recycling Containers	8
3.15	Driveways & Parking Areas	8
3.16	Garages	9
3.17	Shade Devices	9
3.18	Fireplaces and Chimney Caps	9
3.19	Cabanas and Guest Cottages	9
3.20	Pergolas/Gazebos	9
3.21	Arbors/Trellises and Covered Patios	10
3.21.1	Pools, Spas, and Lanais	10
3.22	Walls	10
3.23	Ancillary and Ground Mounted Equipment	10
3.24	Antennae and Satellite Dishes	11
3.25	Security Treatments	11
3.26	Fire Protection Systems	11
3.27	Hurricane Protective Systems	11
4.0	REVIEW PROCEDURE	
4.1	Introduction	11
4.2	Preliminary Design Submittal	11
4.3	Review Decisions	12

5.0	GENERAL	
5.1	Interpretation/Governing Precedence	13
5.2	Enforcement	13
5.3	Maintenance of Undeveloped Lots	13
5.4	Phases of Construction Scheduling	13
5.5	Severability	14
5.6	Notices	14
5.7	Non-Liability for Approval of Plans	14
6.0	RULES FOR CONSTRUCTION	
6.1	Construction Conduct	15
6.2	Governing Authority	15
6.3	Construction Trailers, Portable Field Offices, etc.	15
6.4	Debris and Trash Removal	15
6.5	Sanitary Facilities	16
6.6	Vehicles and Parking Areas	16
6.7	Excavation Materials	16
6.8	Building Envelope Fencing	16
6.8.1	Filter Inlet Drains	16
6.9	Restoration or Repair of Other Property Damages	16
6.10	Miscellaneous and General Practices	16
6.11	Construction Access	17
6.12	Dust, Mud & Noise	17
6.13	Construction Signage	17
7.0	LANDSCAPING	
7.1	Introduction	18
7.2	Landscape Planning Concepts	18
7.3	Planting Requirements	18
7.4	Irrigation	20
7.5	Walls and Fences	20
7.5.1	Swimming Pool Security Fences	20
7.6	Utilites and Trash	21
7.7	Barbeques, Fire Pits and Exterior Fireplaces	21
7.8	Fountains, Water Features and Decorative Ponds	21
7.9	Statues/Sculptures/Lawn Ornaments/Artifacts.	21
7.10	Yard Furniture	21
7.11	Signage	21
7.12	Lighting	22
7.13	Holiday Decorations	22
7.14	Flagpoles	22
7.15	Recreational Vehicle Storage	22
7.16	Recreational Facilities	22
7.17	Animal Enclosures	22
	APPLICATION FOR LANDSCAPE REVIEW	23
	APPLICATION FOR NEW HOME PLAN REVIEW	24
	GLOSSARY	25

1.0 VISION AND ARCHITECTURAL REVIEW

1.1 Architectural Review

The purpose of the Custom Home Design Guidelines is to ensure the high standards of the Riverbend neighborhood, as well as the Sun City Hilton Head Design Guidelines, are maintained during construction of all new custom homes in this neighborhood. This includes concerns that the style, color, materials, size, and landscaping of the building will enhance the neighborhood and the home will work in harmony with its surroundings.

Riverbend is a neighborhood of custom designed homes within Sun City Hilton Head and as such has the need for the addition of an Architectural Review Subcommittee (ARS). Individuals who wish to build a home in Riverbend must submit the building design plans as outlined within this document to the Community Standards Department who will present them to the ARS. The ARS is part of the Sun City Hilton Head Modifications Committee (Modifications Committee) and consists of three residents of Sun City Hilton Head including one Modifications member with staff support from the Community Standards Department. ARS members will be selected from applicants and will be appointed by the Board of Directors (the Board) for a two year term. Each ARS member will have the ability to apply for a second two year term. After two consecutive two year terms the resident must take one year off before applying to serve again.

In all new construction of custom homes, decisions from the ARS may be appealed to the Modifications Committee and the BOD. All modifications to completed homes in Riverbend, as well as in other Sun City Hilton Head neighborhoods require applications be submitted to Community Standards Department. All violations are reviewed and enforced by the Community Standards Department. It is the builder's responsibility to validate and comply with all local regulatory bodies.

1.2 Community Vision and Design Philosophy

Riverbend neighborhood is an active adult community composed of single family detached homes for residents aged 55 or better with a wide array of amenities. From its inception, the vision for Riverbend has been to develop a premier neighborhood of custom designed homes that demonstrate sensitivity to South Carolina's coastal Lowcountry environment, as well as to offer a comfortable, rewarding lifestyle to its residents.

The guiding principles of minimal visual impact, preservation of the ecosystem, climate and site responsiveness shall underline the design of custom homes at Riverbend while maintaining the goal to provide and maintain the highest level of quality in architecture, landscape and the protection of its inherent natural beauty. The design goal for Riverbend is for homes to blend, using materials, color, and design into a visually non-distracting enhancement of nature. Artificial and applied design elements that disrupt and cause attention to specific details are not appropriate.

Design and construction techniques used in the construction of Riverbend shall promote a response to environmental quality considerations, such as tree preservation and runoff water quality. Adherence to these principles will create homes that visually blend into the delicate environment and offer comfortable, rewarding lifestyle for the residents. In order to respect and maintain the beauty of the Lowcountry, the following general rules shall be utilized in the design of custom homes:

- a. Construction and exterior home improvements shall not negatively impact or change the sensitive buffer area of the salt marsh.
- b. New home designs must maintain architectural continuity, with existing homes.
- c. Construction and any improvements shall create the lowest impact on environment.
- d. Improvements shall consist of the greatest practical number of architectural elements.
- e. Landscaping shall be primarily composed of native plant material, with a goal of preserving existing mature vegetation, or replanting that which has been disturbed.
- f. Buildings shall have the lowest safe levels of exterior lighting which does not disturb adjacent properties or nature.

The design and architectural philosophy for Riverbend is based on a sensitive blending of structure and landscape within the native environment – the integration of a residential neighborhood with the forests, lakes and salt water marshlands. Each custom home in Riverbend should be designed to respond to these unique site conditions.

Existing vegetation and natural features, topography, and solar orientations vary from Custom Home lot to Custom Home lot and create the framework upon which individual home designs should be based. Custom home design should complement and accentuate these natural assets through the use of building materials and colors. They should respond to individual lots so augmentation of natural areas does not occur.

1.3 Design Guidelines Objectives

These Custom Home Design Guidelines not only provide a set of design standards, but they also establish orderly procedures to be followed for the review of proposed new Custom Homes, promote responsible landscape design practices and allow for careful monitoring of proposed future modifications to approved plans. A fundamental objective of these Custom Home Design Guidelines is to ensure that the design of each Custom Home is responsive to the site features and neighborhood conditions, thus following the philosophy and the integrity from which Riverbend was conceived.

Each custom home design shall strive to create harmony with its Lowcountry surroundings and to enhance its neighborhood streetscape. The ARS will use the following criteria to evaluate a home's design appropriateness:

- a. Is the home style and house size uniquely suited to its specific site? Has the home previously been constructed in Riverbend?
- b. Does size and design enhance coordinate with existing homes?
- c. Does the design contribute to a diverse and interesting street-scene?
- d. Has consideration been made to avoid marked similarity to homes adjacent, opposite and diagonal?

The Custom Home Design Guidelines discussed herein are intended to supplement the Sun City Hilton Head Design Guidelines. Riverbend homes shall comply with both sets of Guidelines. In the event an interpretation is necessary, the Sun City Hilton Head Design Guidelines shall supersede these Custom Home Guidelines, unless otherwise noted in this document. The terms used in these Custom Home Design Guidelines shall generally be given their naturally, commonly accepted definitions unless otherwise specified (See Glossary).

This document shall govern decisions of the ARS, but cannot be all-inclusive. Therefore, the spirit and intent of this document shall rule when necessary.

1.4 Tree Protection

During stake-out review of construction, ARS will determine areas of tree protection provided on construction detail/site plan. Tree Protection Zones shall be established and maintained for each tree preserved or planted on a development site as follows:

1. **Resource Protection Barrier.** Prior to commencing construction or any site alterations, a conspicuous four-foot high barrier to prevent encroachment by people and vehicles shall be erected around the tree protection zone that shall require approval by the ARS. Barriers shall be erected around groupings of trees, where feasible. Use of orange polyethylene safety fencing or a similar material is mandatory. The barrier shall remain in place until the certificate of occupancy is issued.
2. **New Trees.** The protection zone in open areas shall be a circle with a radius of two feet for understory and palmetto trees and three feet for canopy or pine trees.
3. **Paving.** The area within the tree protection zone must be open and unpaved, except where approved perforated pavers may be utilized, or tree aeration systems and tree wells installed.
4. **Change in Grade.** Shall not be permitted within the tree protection zone except for a two-inch cut or a two-inch fill of topsoil, sod, or mulch.
5. **Under Ground Utility Lines.** Shall be routed around and away from tree protection zones. Necessary installation through tree protection zones shall be accomplished through tunneling, rather than cutting open trenches.
6. **Disturbance.** Where machinery must pass within a tree protection zone during construction, approval shall be required from the ARS to protect tree roots from excessive compaction during construction, special cushioning measures may be required by the ARS, such as a heavy layer of chip mulch or pine straw or a bridge of boards.

7. **Existing Trees.** The tree protection zone shall be a circle with a radius of one-half foot for every one inch of Diameter Breast Height (DBH) or four feet, whichever is greater. The ARS may approve an alternative tree protection zone. If an alternative tree protection zone is needed, it can be determined by a certified forester that a specific design or protection will not injure any tree under consideration. In no case shall the circle of protection be less than one-third of the total diameter required by the formula in this subsection.

2.0 SITE DEVELOPMENT GUIDELINES

2.1 Building Envelopes

Prior to selecting a particular custom home site, the Owner should become familiar with the terrain, site features, and land plan. Each Custom Home lot has a pre-defined Building Envelope, which has been established on the recorded plats for each neighborhood. **A Building Envelope is defined as the buildable Custom Home lot area remaining after property line building setbacks are applied.** Building Envelopes are applied to each Custom Home lot to maintain existing natural features, provide visual buffers of native landscape between properties, protect neighboring corridors, and minimize grading impacts. The Owner may exercise discretion in locating the Custom Home on the lot, subject to these factors.

At Riverbend, building setbacks are 10 feet from any side property line, 20 feet from any front property line, and a minimum of 20 feet from any rear property line, unless otherwise noted in recorded plats for Riverbend. Rear setbacks along wetland, marsh, river edges, lagoons, and detention basins shall be 20 feet from the rear property line. Setbacks for Custom Home lots adjacent to environmentally sensitive areas (wetlands, marshes, and rivers) will be influenced by the presence of the South Carolina Coastal Council Criteria Line and the Office of Ocean & Coastal Resource Management (OCRM) and may have a greater setback requirement than the distances listed above. In no case will any parts of the home or any vertical improvement thereof be allowed outside these prescribed setbacks, with the exception of the driveway or mailbox.

2.2 Custom Home Lot Zones

In addition to the Building Envelope, three other areas need to be identified:

- The zone between the Owner's property line and the setback line is the "Natural Area" and shall be maintained in its natural state. Any other non-vertical improvements such as pools, turn-arounds, and patios may be built upon approval of the ARS.
- The zone between the setback line and the building walls is the "Transitional Area". The significant trees in this area are to be protected as much as possible.
- The landscaped zones adjacent to the building, which are not visible from neighboring properties, are the "Private Areas." See **Section 7.0 Landscape Guidelines** for further descriptions and requirements.

2.3 Site Clearing

Site clearing shall begin only after proper approvals have been obtained and significant specimen trees have been located, identified, protected and existing native vegetation to remain has been properly protected. Preservation of the trees in Beaufort County is a very important part of the community.

Significant specimen trees are any trees, including native pines, that are 6" or greater and 4' DBH from ground level. Fines up to and including \$1,000 per tree will be levied for any tree removed without proper approval. (See Riverbend ARB Fee and Fine Schedule in the yearly Schedule of Fees and Community Rules.) Replanting of replacement trees may also be determined by ARS Committee.

The correct way to identify trees for the review process is:

- All of the specimen trees must be flagged in white to correspond with a submitted tree topography plan.
- Trees to be removed for the house, driveways, patios, or decks are to be re-flagged in red leaving the color above in place.
- If excessive tree removal is required for access or construction, it will be noted so extra replacement trees will be required when the landscaping plan is submitted.

No trees and vegetation shall be removed which could cause disruption of natural water courses, erosion, loss of sediment or scar natural landforms. In areas of native wetlands and salt marshes, extreme caution should be extended to preserve the land in its original condition. It is the protection of these areas that makes Riverbend's

setting and value unique. To disturb those areas would be in conflict with the established Community Vision (See **Section 1.2 Community Vision and Design Philosophy**).

Tree, vegetation, and soil removal, or construction that compromises original integrity within the OCRM setback, is not allowed.

The debris from site clearing work shall be disposed of off-site and not on adjacent property. **No on-site burning is allowed of either natural debris or construction material of any kind.**

2.3.1 Alteration or Construction Adjacent To Salt Marsh Edge

To preserve the scenic beauty of the salt marsh area of Riverbend, and to protect the natural environmental and associated wildlife, no private docks, boardwalks into the marsh, boat storage or other alterations or improvements are allowed on the salt marsh edge of individual Riverbend lots. The area covered by this prohibition shall include all areas below mean high-water of tidal areas adjacent to individual lots within Riverbend, and all areas landward of mean high-water (which is the property line of marsh front lots), within 20 feet thereof. All property owners should be aware that additional restrictions may apply under Beaufort County, State of South Carolina, or federal government law.

2.4 Site Grading & Drainage

Site grading plans shall include earth contouring to create visual interest in the landscape and produce soft, gentle transitions between the existing Natural Area and the Custom Home. Contouring shall transition into natural grades to create a flowing, continuous landscape and must not result in major changes to drainage patterns on or off the Custom Home lot. Changes in the natural grade around existing tree masses shall be avoided.

Site drainage shall be carefully considered when developing a Custom Home lot.

- a. No owner shall alter the natural drainage on any Custom Home lot to materially increase the drainage of storm water onto adjacent properties.
- b. Drainage may not be altered to create any condition that could lead to off-site soil erosion.
- c. Water may not be directed toward any building foundation.
- d. The inlet and outlet points of each Custom Home lot shall be maintained. When any additions, alterations, or renovations are performed to an existing home, the established Custom Home lot drainage shall not be altered.
- e. All grading shall be designed by a South Carolina professional engineer or Registered Landscape Architect and submitted to the ARS for approval as part of the New Home Plan submission and again when landscape plans are submitted.
- f. Fines will be issued to lot owner if any damage is done to adjacent lots or trees that are to remain.

The Owner shall hold harmless the Sun City Hilton Head Community Association (Community Association) and the Reviewing Body for any damage caused by the alteration of the grade by Owner in connection with the design or installation of Owner's landscaping, including damage to Owner's home. The owner shall be responsible for any additional damage to the property, home or neighboring property caused by altering the grade.

3.0 ARCHITECTURAL GUIDELINES

3.1 Architectural Character

It is not the intent of these Custom Home Design Guidelines to mandate a particular architectural style, as individual creativity and diversity of design will enhance the overall character of the Riverbend neighborhood. However, homes that draw their form from popular and traditional residential Lowcountry designs with the use of wood, brick, stone, tabby, stucco, clapboard, and cement planks are encouraged. At the same time, discordant or competing architectural shapes and design statements that vie for attention or attempt to create a greater visual impact than neighboring shapes and designs are discouraged. Custom Homes shall be designed to reflect and maintain the overall quality of Riverbend.

Outdoor spaces with full and partial shading are also encouraged to maximize the opportunities for outdoor living. Homes will be visible from many vantage points and should be designed with equal attention paid to each side. Designers are encouraged to consider the appearance of their home's roofscape, by remembering that sloped roofs are required and varying pitches are preferable. Artificial details that do not blend in are not appropriate.

3.2 Size

Custom Homes shall contain a **minimum** of 2,250 square feet of conditioned space. Each home shall include an enclosed two-car garage. One-and-one-half story buildings shall have a minimum of 2,700 total area under roof. Two story buildings shall have a minimum of 3,000 square feet of dwelling area, with at least 1,800 square feet on the first floor. The square footage of the Custom Home refers to the total air-conditioned area under roof, excluding covered patios and garages.

3.3 Height

Building heights are calculated as the difference between the top of any roof (peak or ridgeline) or parapet and the natural (pre-development) grade directly below that point.

With the exception of chimneys, the maximum allowable building height shall be 35 feet. In no case shall the overall height of any home (with the exception of chimneys) exceed 35 feet from the natural grade below.

Custom Homes must conform to the Federal Flood Zone regulations for minimum finished floor elevation established by the Federal Emergency Management Agency (FEMA). The finished first floor level shall not exceed 5' above the minimum FEMA based flood elevation, or natural grade, whichever is greater.

3.4 Massing

Massing is the arrangement of three-dimensional forms comprising the exterior of the building. Due to their reduced scale and architectural elements, buildings with several smaller components will be more compatible with the Lowcountry environment than a single large volume. Buildings shall be designed with at least two distinct building masses to avoid the “big box” effect. Massing shall vary horizontally with various ridge and parapet lines and vertically with offset wall planes. Large, continuous vertical wall planes are prohibited.

On properties that permit larger buildings, a main house with a smaller detached Guest Cottage connected by a path is a solution. (See **Section 3.19 Cabanas & Guest Cottages**).

Articulation of building masses is required on all four sides of the Custom Home. To enhance the exterior appeal of the Custom Home from the street, front and rear first floor elevations must have facade offsets. Articulation at the side setback may also further increase the distance between Custom Homes on adjacent Lots.

3.5 Window and Door Openings

Openings for windows and doors should be proportional to the structure and form of the Custom Home. Large “banks” of windows without division are not encouraged. No more than 35% of the wall surface should be glass on the street side of the Custom Home. Openings of unusual shapes and sizes should be designed to complement, not detract from, the overall design of a Custom Home. Reflective or mirrored glass is not permitted. Colored glass window and door treatments are not permitted in the front of the home. A small percentage of glass block is permitted. Window frame colors must be in harmony with the Custom Home’s exterior colors.

3.6 Shutters, Window Boxes and Mailboxes

Shutters and/or window boxes may be installed upon approval by the ARS. Shutters are encouraged to enhance a Lowcountry appeal. They may be wood, vinyl, aluminum or functional Bermuda shutters and must be subdued natural colors aligning with Riverbend character. No pastels or primary colors shall be used.

All the mailboxes in Riverbend are of a specific design and must be identical. A list of suppliers is available.

3.7 Foundations

Due to FEMA flood elevation requirements, a substantial foundation may be required. No more than 5' of foundation should be exposed around a home as measured from the bottom of the floor joists. High foundation walls will require careful treatment to help reduce their apparent height and massiveness. Louvered or lattice openings in a foundation wall are preferred, however, pier foundations with lattice infill will be considered in order to minimize impact on existing trees. Raised foundations shall be minimized.

3.8 Decks, Balconies, and Exterior Stairways

Above-grade decks and balconies may reduce the scale of a Custom Home and add texture to the home. These elements shall be designed to blend into the main home through the incorporation of similar materials and architectural character. Decks on the 2nd floor are discouraged. However, each request will be reviewed and judged

individually based on privacy issues and subsequent impact on neighboring properties. Large deck areas should be split into smaller outdoor “rooms” which are connected to indoor spaces or other deck areas. Each second story deck area shall not exceed 400 square feet. Detached or freestanding second story decks are prohibited.

Freestanding or exterior stairs to a second level are prohibited. Railings are to be of an architectural style that adds to the design element and does not distract the eye nor cause undue attention to the total design or building style. Railings must blend into the natural setting and the material selection, if different from that of the body of the house, must be submitted for approval before installation. In using decks, balcony, stairs, and railings, the design must be sensitive to the fact that Riverbend is an age restricted, over 55 years young community and these elements should reflect that lifestyle.

3.9 Exterior Stairs and Railing

Exterior stairs and guardrails shall be designed to integrate with the main home in material and architectural character. Freestanding exposed metal stairs or exterior stairs to a second story are prohibited.

3.10 Solar Heating and Power Generation Panels

All solar collection devices/systems should be designed to minimize the visual impact from the street. (See **Section 8.2 Front of House and Yard Area.**) This will be a critical measurement of the approval process. Solar heating and power generation panels (referred to as panels) must be roof mounted and parallel with the roof. The preferred location is on the rear elevation (either on the main roof or a gable side of the rear roof line). Solar panel installations shall not be allowed/visible on front roof areas, parallel with the street, or adjoining gable areas; and shall not be visible from the street of adjoining street side properties. Solar panel will not be permitted for installation on villa units since the Association is responsible for the repair and maintenance of the roofs. The total square footage of solar panel installation may not exceed the average power required by the residence. The approval process will be on a case-by-case basis with consideration given to aesthetics and sun reflection from the panels.

Solar energy generating roof systems designed to appear as shingle roofs from the ground shall be approved on a case-by-case basis if they meet the following criteria:

- All mechanical or electrical elements other than the roof mounted system shall be housed in the garage or otherwise hidden from view.
 - The color of the roof system shall be compatible with the house and the neighborhood in which it is located and must be uniform in color.
 - The roof must not be more reflective of sunlight in a manner or to a degree that will cause any annoyance to neighbors or those passing by from the ground level. The roof must be designed to appear as a typical shingle roof (TESLA roofing system).
- 1.) Solar panel and or solar collection device installations shall be judged on, but not limited to the following:
- a) modulus of reflectivity (must be less than 3.0%);
 - b) inclusion of an ARC (anti reflective coating);
 - c) all revealed components are a uniform color (brackets, support angles, the panels, etc.);
 - d) with the exception of the disconnect box, all controls are installed inside the home;
 - e) the array is symmetrical (i.e. no missing panels due to flues, standpipes, vents blowers, etc. protruding through the roof);
 - f) the color of the roof with respect to the array color;
 - g) the use of “faux panels that contain the same surface materials as functional panels” in the valleys of a roof to create a symmetrical array layout;
 - h) the property location with respect to the surrounding houses, the neighborhood and overall surrounding area.

3.10.1 Roofs

1.) The following general and specific guidelines apply to all roof designs:

- a. Extreme roof pitches for segments of a total roof can have positive results. Sloped roofs, other than for dormers, must have a minimum of 4:12 and a maximum of 12:12 pitch. Any other ratio than the above must be submitted for approval. Flat roofs are not permitted. Limit extreme pitches to 25% or less of the total roof area (such as dormers, porches and covered walks).
- b. Gambrel roofs are prohibited.
- c. Roof equipment or machinery is prohibited.
- d. With focus on softening rooflines and ridges, hip roofs should be the predominant roof form. Gables, shed and mansard roofs may be permitted.
- e. Ridgelines should not extend more than 50% of the residential elevation in any direction without either a vertical or horizontal change in direction.
- f. Roofs may not descend closer than 9' to grade.
- g. High roof massing should occur at or near the center of the overall roof structure. (Reference 3.4 Massing)
- h. Roof overhangs and dormers are encouraged to add interest, shadow relief and variety to roof forms. When used, dormers must be an integral part of the roof form and proportional to the overall scale of the roof. Dormers may be gable, hip or shed forms.
- i. Roof surfacing materials are an important visual element of the overall design.
The following roof surfacing materials are permitted:
 - Slate
 - Asphalt shingles
 - Wood shingles
 - Metal (lead and tern metal)
 - Weathered copper
- j. The ARS will evaluate each material and color to ensure compatibility with the Custom Home's setting. White or brightly colored roofs are not acceptable.
- k. Skylights, if used, must be integrated with the roof form to be as unobtrusive as possible.
- l. Roofs may drain only onto the deeded Custom Home lot area. No roof shall drain directly onto a neighboring property.
- m. Artificial or trite detail additions are not appropriate.
- n. Roof vents, plumbing vents, and other penetrations will be painted to blend with roof and the vertical rise must be straight.
- o. The actual solar panels shall be the only portion of the installation visible on the roof. Items such as, but not limited to, conduit, cable/conductors, and control boxes shall NOT be visible on the roof. An alternate to being mounted on the house roof would be on a lanai or pergola roof; in this case, they must also be mounted parallel with the roof. Installations on posts or other locations not on the house roof, lanai roof, or pergola roof will not be considered.

3.11 Building Materials

Exterior materials shall be selected to harmonize with the natural landscape. Wood, brick, stone, tabby, stucco or clapboard is the suggested exterior wall materials. Aluminum and vinyl are not acceptable exterior selections, with the exception of trims, gutters, window frames, railings, shutters and mullions. Reflective building materials shall be prohibited.

3.12 Gutters and Downspouts

Gutters should be concealed or designed as a continuous architecture feature. Exposed gutters and rain chains shall be either colored to match or complement the surface to which they are attached, but should not be regarded as a separate design element. Gutters and downspouts should be depicted on building plans.

3.13 Color

Exterior colors shall be selected to blend, not compete, with their natural environment. In keeping with the Custom Home Design Guidelines objectives (See Section 1.3 Design Guidelines & Objectives), colors are to be subdued and taken from nature and shall not be harsh, stark or pastel. White as a roof, body, trim, shutters, doors or garage door color is not allowed. Black is only allowed as an accent color on front entrance doors, shutter or iron work. Blue hues are not permitted. Single-color houses are not permitted, as the trim is used to define detail. To add interest and break up large masses of body colors, architectural details and trims should be accented with colors that enhance, but do not distract. Two colors of trim plus shutter colors are encouraged. As with roof guidelines, superficial details or additional surface ornamentation that does not enhance the total effect is not appropriate. All changes to the exterior color of the home will require a Modification Application.

Exterior colors must be presented to the ARS and receive approval before they are applied. Failure to do so may result in lot owner having a building repainted, which would prove both costly and time consuming. In making color selections:

- a. Indicate all color selections (including doors, garage doors, railings, gutters, and service yards) on the appropriate Riverbend Exterior Color Package sheet. No other forms will be considered or accepted.
- b. If any natural stains, bricks, or stones are used, actual samples must be submitted as well.
- c. Using colored pens, indicate on one of the submitted elevation drawings where each of the colors will be used. Please fill in all views.
- d. It is possible one color on the submittal might not be accepted. If this occurs, you will need to resubmit with all the previous colors included so the entire color package might be seen.
- e. All exterior colors and finishes must be applied to a mock up board constructed on the job site prior to application on the house. Mock up board shall be kept on site until all final ARS inspections are completed. (See page 13 of Builder's Packet for details.)

3.14 Service Yard and Recycling Containers

While service yards provide an area to screen equipment, they shall first and foremost be designed in such a way as not to be an eyesore from either the street, lagoon or the adjacent yard. Two service yards are allowed on each home site. Service yards shall have no roof over any part and shall also have visually solid enclosing walls. Service yards shall be located in either the back or side of the house and will be attached to the walls of the house on its long side. Service yards shall be permanently secured to the ground.

Service yard walls shall be constructed of material similar to the home or trim. Vinyl or plastic are not acceptable for the screening material. It must fit within the required setback line and be screened by attractive evergreen landscape material. It must be painted in either the body of the home or its trim color, whichever selection is the least obtrusive.

The service yard may be used to store heat pump compressors, electric and water meters, swimming pool pumps and controls, propane tanks, and irrigation system controls.

3.15 Driveways and Parking Areas

All impervious surfaces (driveways, walks, and turn-arounds) will be closely reviewed and must be "site specific requested". We do not encourage on-site guest parking and discourage circular driveways when these interfere with the integrity of native vegetation. To minimize the amount of impervious surfaces used, if a circular driveway is desired, then the turn-around area must be reduced where practical. Construction of driveways shall be subject to the ARS approval. Your architect or engineer must verify location with the ARS when submitting the site plan.

Driveways may widen within the Custom Home Lot; however, driveways wider than 20 feet will be reviewed on a case by case basis so as to minimize the amount of impervious surfaces on the lot. Where possible, access to the Corner Home Lots shall be from the least traveled street.

The addition of color or decorative pattern changes to concrete work may be allowed upon approval of the colors and/or designs by the ARS. Plans for ANY contemplated concrete work must be approved in writing by the ARS BEFORE any work commences. Applications for a pervious surface for golf cart entry to the garage will be reviewed on a case-by-case basis and must be approved in writing by the ARS before any work commences.

3.16 Garages

A minimum of two-car garages are required on all homes. No outdoor parking of recreational vehicles or boats will be allowed except as permitted on a limited basis pursuant to the Declaration of Covenants, Conditions and Restrictions for Sun City Hilton Head (CC&Rs).

Garage doors must be roll-up and inset a minimum of 3" and must be offset by a minimum 12" from the adjoining wall. No screened garage doors are allowed. Carports are not allowed.

Garage door windows are permitted but must relate to the Custom Home's architecture and possess similar mullion and frame detail. Service doors must not be front facing and, if placed to side, they should be screened by appropriate screening such as landscape and/or decorative features.

Side loading garages may be considered. Garage spaces facing any street must be carefully designed for minimal impact on the overall street scene.

3.17 Shade Devices

Man-made screens and shade devices must appear as an integral part of the building elevation and must be made of materials that complement the Home and the Neighborhood. Fabric awnings or similar shading devices must be approved at the time of construction by the ARS. They are permitted on the rear and side of the home when the color, which must be solid, is consistent with the color of the home, roof, and shutters. Colors and style must be presented and approved by the ARS. Awnings or such other devices must have a retractable feature, either mechanical or manual, for storage in inclement weather. Fixed awnings are not permitted. Patio awnings shall not extend beyond 12 feet from the house or beyond the existing patio. It shall be retractable to the wall to which it is secured, leaving no support structure on the patio. The awning shall be in scale with the window/door opening. Awnings shall be permitted only in rear yards and mounted over concrete or paver patios. Exterior wiring or cords on all awnings shall be enclosed in conduit. Mounting locations are on walls or soffits and shall not be mounted on roofs. Shading devices must not extend over ten feet (10'). Other shading devices may be considered.

3.18 Fireplaces, Chimneys and Chimney Caps

Chimney elements shall be designed to enhance the overall design of the home. Chimneys shall be clad in either stucco or brick. When pre-fabricated metal fireplaces are used, the factory provided chimney cap shall be shielded with a non-combustible shroud in a design compatible with the home. All fireplaces shall meet the requirements of all governing authorities, including the Environmental Protection Agency, Beaufort County and the State of South Carolina, and have approved spark arrestors.

3.19 Cabanas and Guest Cottages

Cabanas and guest cottages shall be designed to visually relate to the main home in massing, building materials and architectural character. Any cabana and/or guest house must be built within the building envelope and shall comply with all applicable zoning regulations. The size of these structures will be limited to 300 square feet or less.

3.20 Pergolas/Gazebos

The placement of the pergola or gazebo structures shall be only in the rear yard within the building envelope and at least 20' from any neighbor's Lot line. When installed in conjunction with home construction application for size, materials and placement shall be approved by the ARS, prior to installation. Following construction completion, any further application requires approval from the Modifications Committee. A Modification Application must be submitted for the addition of an electronic pergola shade.

Pergolas typically have a flat, open roof constructed of crisscrossing lattice or slatted planks with vertical post supports. Gazebos are free-standing polygonal peaked roofed structures with open or partial walls. Pergolas and gazebos shall be in the rear yard only, shall not project past the sidewalls of the house. Attached pergolas are vertical construction and are subject to the 25% rule for maximum size. The size of the free-standing pergola and gazebos will be evaluated on a case-by-case basis. Pergolas and gazebos may be constructed of wood or manmade materials specifically designed as pergola or gazebo structures. Pergolas shall be white or match the trim or body color of the house. Unpainted wood is not permitted. Motorized lattice is permitted so long as the components, including strings, are not visible and are enclosed in conduit. The conduit must be painted to match the body or trim color of the Pergola.

3.21 Arbors/Trellises and Covered Patios

When installed in conjunction with home construction, the size, materials and placement for arbors/trellises must be applied for and approved through the ARS. The placement of arbor structures shall be only in the rear yard within the building envelope and at least 20 feet from any neighbor's lot line. The maximum size of any arbor shall not exceed the height of eight feet (8'), and the width of six (6') feet. The arbor must have approved vegetation, which will be required on the finished product. Patios and courtyards shall be designed as an integral part of the architecture of the home.

3.21.1 Pools, Spas and Lanais

Privacy for the owner and neighbors is of primary concern and importance to pool and spa area design. Pools and spas must be contained within the Building Envelope. Pool equipment shall be screened as noted above.

All swimming pools and pool/spas shall be of the in-ground type. All swimming pools and pool/spas shall meet all governing authority requirements. Pool and spa drains must connect to the sanitary sewer system. No pools can be drained onto open space or any other property. Discharge to the sewer shall not exceed Beaufort County and the Beaufort Jasper Water & Sewer Authority Guidelines. Discharges within Private Area shall not be conveyed outside the building envelope.

Front yard pools and spas are prohibited. Pools and spas may be located within enclosed courtyards and rear yards only. The design of the pool should avoid an excessive amount of clearing and disturbance to the existing vegetation.

Diving boards and slides are not allowed.

All screened lanais or add on screened porches should be constructed in a manner that is architecturally pleasing and complimentary to the house. Pitched roofing is required to comply architecturally with the rest of the house. Heights cannot exceed that of the main house and cannot be lower than existing soffit. Lanais must conform to setback guidelines and be done in bronze aluminum tubing, which is less invasive to this natural setting. Flat screened roofs shall be reviewed on a case-by-case basis. Porch roofs shall match the main house roof. The installation of a phantom lanai screen may be allowed. A Modification Application must be submitted prior to the installation of a phantom lanai screen. The hardware for phantom lanai screens must face the inside of the lanai and must not be visible from the outside of the lanai. Lanai and porch roofs shall match the main house roof.

3.22 Walls

Walls shall be compatible with the Custom Home architecture. All walls shall comply with the Sun City Hilton Head Design Guidelines including the following:

- a. During construction no alterations, changes or additions to walls shall be allowed without the prior written approval of the ARS.
- b. No courtyard wall (wall attached to home) shall be greater than 42" above finished grade elevation and must be contained within the building setbacks.
- c. Freestanding walls shall not exceed thirty inches in height and must be contained within the building setbacks. Height is measured from the finished grade along the interior side (house side) of the enclosure.
- d. Wall surfaces shall be masonry, stucco, or stone and be consistent with building surface.
- e. Stucco walls shall be painted with a sand finished texture or a texture that matches that of the home.
- f. Wrought iron must match existing wrought iron style of the home (powder coat finish only).

3.23 Ancillary and Ground Mounted Equipment

Roof-mounted equipment (including without limitation mechanicals and air conditioning) is prohibited. No solar heating equipment or device is permitted outside the Custom Home except such devices whose installation and use is protected by federal or South Carolina law. Notwithstanding such protection, an application for such equipment or device must be submitted for approval under **Article XI: Architectural and Design Standards** of the CC&Rs prior to installation and approval. Approval will be granted only if:

- a. Such equipment or device is designed for minimal visual intrusion when installed (i.e. is located in a manner which minimizes visibility from the street or an adjacent Custom Home lot and is consistent with the Community Wide Standard); and

- b. The equipment or device complies (with the maximum extent feasible) with the Custom Home Design Guidelines within the confines of the applicable governmental regulations. All ground mounted equipment (air conditioning units, pool, spa and water feature equipment) shall be adequately screened from the street and neighboring property. Screening shall be accomplished by utilizing planting material or by a wall at least one foot higher than the equipment being screened. Screen walls shall be considered an integral part of the home and shall match the design, color and exterior texture of the home. Screening structures shall be set back from the equipment according to manufacturers' guidelines or a minimum of three (3) feet if no recommendations are available. Air conditioning units shall be ground mounted and may not exceed 3 feet above finish floor. The ARS must approve screening materials and designs prior to installation. Screen device must stay within the building envelope.

3.24 Antennae and Satellite Dishes

All installations shall comply with the Sun City Hilton Head Design Guidelines.

3.25 Security Treatments

Security treatments at homes, such as gates at driveways, are subject to review by the ARS due to their aesthetic impact on the neighborhood. Steel or decorative iron bars on windows or doors of any Custom Home are prohibited.

3.26 Fire Protection Systems

All structures within Riverbend must meet Governing Authority requirements for fire protection systems.

3.27 Hurricane Protective Systems

Hurricane Protective Systems shall be used as a protection system only in the event of an oncoming storm and are not to be confused with decorative shutters. The system may not deviate from the aesthetic look of the homes. The system may not be implemented until the General Manager announces such and must be removed and stored in a concealed location no later than 72 hours after the storm. Manufacturer's catalogs and the selected design should be attached with the submitted design application. The Community Standards Department may be contacted for any questions regarding desired hurricane protective systems.

4.0 REVIEW PROCEDURE

4.1 Introduction

These Custom Home Design Guidelines govern the construction, placement and installation of landscaping, pools, water features, walls and fencing, lighting and alteration of grading or drainage on Custom Home lots within Riverbend when in conjunction with home construction. After construction is complete, approval is required by the Sun City Hilton Head Modification Committee. The ARS must approve all plans and materials for work proposed on a Custom Home lot in writing before work may begin. Custom Home lot owners are responsible for complying with the standards and procedures set forth in these guidelines, as well as for compliance by builders, consultants, contractors and others involved in work on their Custom Home lot. Custom Home lot owners are also governed by the architectural and construction requirements contained in the CC&Rs and any applicable Supplemental Declaration, as well as the requirements and regulations of any applicable governing authority. A summary and checklist also describing the review process may be found at the end of these Custom Home Design Guidelines.

4.2 Preliminary Design Submittal

The Application for New Home Plan Review included in this package is to be completely filled out and submitted to the Riverbend ARS at least two weeks prior to their monthly meeting. All completed submittals are to be delivered to the Community Standards Department during regular business hours where they will be logged in. Do not deliver submittals to any other place. All below information must be included in the submittal. Incomplete submissions will be returned without review.

The design submittal shall include:

- a. Completed application form, application fees and \$5,000 escrow compliance check made out to Sun City Hilton Head Community Association, Inc.

- b. A survey by a land surveyor licensed in the state of South Carolina drawn at the same scale as the site plan and showing Custom Home lot boundaries and dimensions, setbacks, utilities and easements and existing natural features. **Two copies required including a PDF.**
- c. Site Plan at a scale not less than 1"=20'. The Plan shall show the entire Custom Home lot, building envelope, buildings and other structures, driveway(s), patios, proposed utility locations, site grading (with existing and proposed contours at 1' intervals) and existing natural features with their proposed status. The site plan shall include minimum dimensions from building corners to property lines. **Two copies required including a PDF. Submit a site development plan including but not limited to construction access, location of dumpster and port-o-let.**
- d. Floor plan at not less than 1/4"=1' showing rooms with room names, finish floor elevations and patios, sidewalks, pools, other site features, walls and fences attached to building. **Two copies required including a PDF.**
- e. Completed Storm Water Pollution Prevention Co – Permittee Form accompanied by a Storm Water Pollution Prevention Plan. A stormwater pollution prevention plan (SWPPP) is a written document that lists the potential sources of stormwater pollution, describes practices that will be used to reduce pollutants, and helps assure compliance with the terms and conditions of the Construction General Permit (CGP). **Two copies required including a PDF. Submit site development plan.**
- f. Roof plan at not less than 1/4"=1' showing roof slopes, skylight(s), roof materials, scuppers and/or downspouts.
- g. Exterior elevations of all sides of home at not less than 1/4"=1' showing existing and proposed grades, building materials and heights of structure above natural grade. Include adjacent walls and structures as required to describe the overall expression of the home when viewed from surrounding properties. **Two copies required including a PDF.**
- h. A minimum of two building sections showing existing and proposed grades and maximum allowable heights.
- i. Exterior material and color selections. Colors must be attached to the Riverbend Exterior Color Package form in appropriate boxes and indicated on one of the exterior elevations using the identical exactly where the colors are applied. Color requests not attached to this application will not be considered. Other building materials such as brick, stone, etc. will be presented at the same time. Read **Section 3.13 Color** to further clarify color and material selections. Extra forms and Custom Home Design Color guidelines are available from the Community Standards Department.
- j. Locations of exterior surface mounted building lights shall be shown. All exterior floodlights are to be on motion sensors. Other exterior lights, including landscaping, are to be at a low level as not to be nuisance lighting. In addition, every home in Riverbend must have a low voltage lighted street number on the garage. (Check with the Community Standards Department for a list of suppliers.)
- k. When the framing is complete, submit complete landscape plans. (Please refer to **Section 7.0 Landscaping Guidelines** for all information and requirements on landscape plan submittal.) Landscaping is to be completed before occupancy.

4.3 Review Decisions

Each submittal will be reviewed by the ARS at the monthly meeting. This includes the landscape plan, which is submitted at a later date. The builder will be notified in writing within two (2) weeks of the meeting date. If accepted, both copies will remain with the Community Standards Department. One copy will be used for construction field inspection and checked at each stage of the process. The second copy and the remaining submittal will stay on file with the ARS. No revisions are to be made after final approval without additional submission and approval from the ARS.

If the submittal is denied, one marked copy may be returned to the Applicant with a letter from the ARS listing the reasons for denial.

The decision will be in one of the following forms:

“Final Approval” –The submittal, as presented, is approved in its entirety and the applicant is free to move on to the next phase. See **Section 5.4 Phases of Construction Scheduling**.

“Disapproved” – The entire submittal is rejected. The ARS will list either general or specific reasons for the rejection. If rejected, the applicant shall resubmit the entire package addressing the ARS concerns. If rejected again, the applicant will be required to reimburse the Community Standards Department for the cost of further review(s). The results of reviews or comments may not be discussed with individual ARS members over the telephone. Communication regarding reviews shall be in writing or e-mail. No approval shall relieve the owner/applicant from complying with the requirements of these guidelines. Revisions to the plans after final approval has been granted shall be submitted to the ARS for review. Submittal shall clearly describe proposed revisions to the approved plans.

5.0 GENERAL

5.1 Interpretation/Governing Precedence

The Custom Home lots at Riverbend are subject to the Sun City Hilton Head Design Guidelines and the CC&Rs in addition to these Custom Home Design Guidelines and are included herein by reference. In the event of a conflict, the provisions of the Declaration and any supplements thereto shall control over these Custom Home Design Guidelines. To the extent that any Governing Authority ordinances, building code, or regulations require a more restrictive standard than the standards set forth in these Custom Home Design Guidelines or the Declaration, the Governing Authority standards shall prevail. To the extent that any Governing Authority standard is less restrictive, the CC&Rs and the Custom Home Design Guidelines (in that order) shall prevail. Owner’s responsibility to comply herewith is not discharged by compliance with other legal requirements.

5.2 Enforcement

In the event of any violation of these Custom Home Design Guidelines, the Community Standards Department may take enforcement action as provided in the CC&Rs and By-Laws. Enforcement powers include removing or remedying violations, seeking legal or injunctive relief, and possible levying of fines or Benefited Assessments (pursuant to **Article IV: Rights and Obligations of the Association, Section 4.2 Enforcement and Article XI: Architectural and Design Standards, Section 11.8 Enforcement**, of the CC&Rs) against the Owner and/or the Custom Home lot. In any enforcement action, the Community Association shall be entitled to recover all costs incurred in enforcing compliance. It is acknowledged by the Owner that all acts of any Builder working at Owner’s direction or on Owner’s behalf shall be deemed to be done by Owner and shall entitle the Community Association to exclude such Builder from Riverbend and in addition exercise remedies against the Owner.

5.3 Maintenance of Undeveloped Lots

In addition, undeveloped lots may be bush-hogged annually and/or as needed and the grassy front areas shall be mowed to a minimum of twenty (20) feet behind the curb. All curbing shall be edged and blown free of debris. Corner lots shall maintain the side yards in the same manner. All lots shall be free from debris, natural or manmade, and maintained twice a month during the growing season (April through October) and once a month from November through March. **Lots not maintained by owners will be maintained by the Association’s subcontracted landscaper. The fee for this service will be billed to the lot owner’s Homeowner’s Association fee each month.**

5.4 Phases of Construction Scheduling

No tree removal or construction may commence until Final Plan approval is obtained in writing from the ARS. New residential construction must be pursued diligently and without interruption with exterior being substantially complete within 6 months from the start date, and the entire home, including landscape, complete within 18 months.

It is the responsibility of the general contractor to contact Community Standards Department contact person for a field inspection at each of the following stages of construction:

- a. **Final approval and prior to clearing the lot** – the builder is required to stake out the lot completely, including the proposed building footprint, driveway, property corners, and setbacks, as well as the trees marked for proposed removal. The builder is to notify the Community Standards Department contact person either by phone or e-mail when staking is complete. The builder will be notified in writing of the results of the staking inspection.

- b. **Prior to placement of the foundation or laying of the block, and after forms are in place (vertical construction)** – the builder must have a surveyor complete a foundation forms survey and submit to the Community Standards Department contact person when this is ready for review. This may be provided to Community Standards via email. The builder will be notified in writing of the results of the foundation forms survey review.
- c. **Prior to occupancy** – the builder must notify the Reviewing Body of receipt of Certificate of Occupancy, Landscaping must be completed within 30 days.

Each step in this review process must be approved prior to proceeding to the next step. Site reviews will take place on a weekly basis. Upon successful completion of the final step, the escrow compliance deposit will be returned.

There is no scheduling requirement for construction start after Custom Home lot purchase. Construction scheduling requirements run from the date of construction commencement, as applicable. Such scheduling requirements are binding on all subsequent purchasers in the same manner, unless otherwise indicated by ARS, and Owner shall provide to the Community Standards Department its written consent to recordation of a Notice of Deadline to Complete Construction to advise potential purchasers of the Custom Home lot when existing approvals will expire.

Check for accuracy – In the event of a failure to meet any deadline imposed under this section, the Community Association may impose a fine against Owner and the Custom Home lot in an amount not to exceed \$100.00 per day until the schedule is met.

5.5 Severability

If any provision of these Custom Home Design Guidelines shall be held to be invalid, such provisions shall not affect the validity of the remainder of the Custom Home Design Guidelines to the extent that they can be reasonably understood without the invalid portion(s).

5.6 Notices

All notices required or permitted under these Custom Home Design Guidelines shall be in writing and shall be deemed to have been given if delivered personally, if sent by United States mail, first class postage pre-paid, or by overnight document delivery service to:

Architectural Review Subcommittee
Sun City Hilton Head Community Standard Department
127 Sun City Lane
Bluffton, SC 29909

5.7 Non-Liability for Approval of Plans

The guidelines and procedures in these Custom Home Design Guidelines and the CC&Rs are intended as a mechanism for maintaining and enhancing the overall aesthetics of the Custom Home lot Properties but shall not create any duty of any person. Review and approval of any application is made on the basis of **aesthetic considerations only**, and the ARS shall not bear any responsibility for ensuring (a) structural integrity or soundness of approved construction or review; (b) compliance with building codes and other governmental requirements; or (c) conformity of quality, value, size, or design with other Custom Homes. The Community Association, the The Board of Directors, the Modifications Committee or any member of the foregoing shall not be held liable for any claim whatsoever arising out of construction on or review of any Custom Home lot. The ARS does not carry out building inspections and has no responsibility to monitor or inspect construction or to assure the owner his plans are being executed properly.

PRIOR TO SUBMITTING PLANS OR INFORMATION FOR REVIEW, YOU SHOULD READ AND UNDERSTAND THE ABOVE DISCLAIMER. IF YOU DO NOT UNDERSTAND IT, PLEASE CONSULT WITH AN ATTORNEY OR ASK A REPRESENTATIVE OF YOUR CHOICE FOR AN EXPLANATION.

6.0 RULES FOR CONSTRUCTION

6.1 Construction Conduct

Should it become necessary for the Community Association to remedy any violation of the CC&Rs, the Custom Home Design Guidelines, or these Rules for Construction, the costs of such remedy will be charged to the Owner. The Owner's and/or Builder's obligation to repair, correct, complete or otherwise comply with these Custom Home Design Guidelines and these Rules for construction shall not be limited.

All construction personnel shall display an appropriate and current gate pass. All construction traffic must adhere to site access rules. All construction personnel must adhere to project work hours prescribed by the Community Association. No children are allowed on construction site at any time. No construction personnel may remain overnight or use any of the Riverbend amenities.

Riverbend hours of construction operation are as follows:

Monday – Friday	7 a.m.–6 p.m.
Saturday	7 a.m.–3 p.m.
Sunday	No Work Permitted

Construction operations are not permitted on Memorial Day, Independence Day, Thanksgiving Day and Christmas Day.

Construction hours are subject to change and will be determined by the Community Association.

6.2 Governing Authority

All Builders and Owners shall comply with the regulations of any Governing Authority including OCRM and all Beaufort County regulatory bodies, as well as all applicable Environment Protection Agency and Occupational Safety and Health Act, and Army Corp. of Engineers (Erosion Control) regulations and guidelines.

6.3 Construction Trailers, Portable Field Offices, Etc.

Any Owner or Builder who desires to bring a construction trailer, field office, or other temporary structure onto the properties shall ensure that such structure must be of an acceptable color and have no signage. Builder shall submit a copy of the architect's site plan with details of the proposed location of the structure within the building envelope. Such temporary structures shall be removed upon completion of construction. All storage of materials shall be at Builder's own risk and the Community Association shall not provide any security for building sites.

6.4 Debris and Trash Removal

Builders shall clean up all trash and debris on the construction site at the end of each day. Special attention is to be paid to food item removal as these perishables are strictly governed due to the amount of sensitive wildlife in Riverbend. Trash and debris shall be removed from each construction site frequently and not be permitted to accumulate. Lightweight materials, packaging and other items shall be covered or weighted down to prevent their being blown off the construction site. Builders/Owner is required to retrieve promptly all trash and debris blown onto neighboring properties. Any debris found blowing into lagoons must be immediately retrieved to avoid fines. Builders are prohibited from dumping, burying, or burning trash anywhere within Riverbend. During the construction period, each construction site shall be kept neat and clean and shall be properly policed to prevent it from becoming an eyesore or affecting other Custom Home lots or any open space. Dumpsters shall be screened and located within the building envelope or an area approved by the ARS. Dumpsters are to be emptied regularly.

Mud, dirt, and cement dragged from the construction site onto the paved streets of the properties, whether caused by the Builder or any of its subcontractors or suppliers, shall be promptly removed and cleaned by the Builder by the end of each workday. **The use of silt fencing and drain inlet protection at storm drains is mandatory** as run-off in Riverbend goes into the sensitive salt marsh. Any fines incurred by the Community Association will be assessed to the Homeowner/Builder. Failure to comply with this section may result in a fine being levied by the Community Association and/or the violation being remedied by the Community Association as provided in the CC&Rs. In either case, the fine or cost of remedying the violation may be charged against the owner if not promptly paid. The location of dumpster will be set forth in the Development Plan.

6.5 Sanitary Facilities

Each Builder is responsible for providing adequate sanitation facilities for its construction workers. Portable toilets shall be screened and located only within the Building Envelope or in an area approved by the ARS. They must be set up and secured to the ground at the time construction begins, removed in a timely manner, and maintained by regular emptying. The location of port-o-let will be set forth in the Development Plan.

6.6 Vehicles and Parking Areas

Construction crews shall not park on, or otherwise use, other Custom Home lots or any open space. Construction vehicles and machinery, as well as worker's private vehicles shall be parked only on the pre-approved driveway for the Custom Home lot area or in areas designated by the ARS. The driveway must be stabilized with erosion control material to prevent tracking onto roadways. All vehicles shall be parked so as not to inhibit traffic. Construction crews shall not use driveways of neighboring Custom Home lots for turning around their vehicles. Each Builder shall be responsible for assuring that its subcontractors and suppliers obey the speed limits posted within Riverbend. Fines will be imposed against the Builder and/or Homeowner for repeated violations. Adhering to the speed limits shall be a condition included in the contract between the Builder and its subcontractors/suppliers. Repeat offenders will be denied future access to Sun City Hilton Head.

6.7 Excavation Materials

Excess Excavation materials must be hauled away and properly landfilled. The Builder's failure to do so shall permit removal of the material by the Community Association, its designed or assigns with such expense charged against the Owner as a benefited assessment.

6.8 Building Envelope Fencing

To protect the area outside the Custom Home lot area from damage due to construction operations, a standard silt fence shall be installed to completely enclose the property. Care must be taken to install the silt fence with the bottom curled under a dirt cover so that silt and debris do not run under the silt fence. Silt fencing must be properly maintained during the entire construction process. Special care must be given to the street storm drain inlets, as they are a direct conduit to local waterways. Such fence shall follow the property, remain until completion of construction and be promptly removed after construction completion. The construction trailer, if any, sanitary facilities, construction material storage and trash receptacle must be contained within such fence. In the event it is necessary to conduct construction activities outside the boundaries of the lot, Builder shall submit a boundary description and re-vegetation plan of the proposed encroachment for approval. Such encroachment shall be restored to its original condition upon completion of construction.

6.8.1 Filter Inlet Drains

Storm drain inlets shall be filtered and maintained weekly. Filters shall be cleaned in a designated area within the building lot, away from storm drains. Filters shall be cleaned as per **Section 6.10 Miscellaneous and General Practices, part D**.

6.9 Restoration or Repair of Other Property Damages

Damage and scarring of any property, roads, curbs, or common landscaping outside the Custom Home lot will not be permitted. If any such damage occurs, it must be repaired and/or restored promptly and any expense shall be borne by the Owner and/or Builder. In the event Builder fails to restore or repair the damaged area, the Community Association may repair the area and charge all expenses incurred against the owner as a Benefited Assessment.

6.10 Miscellaneous and General Practices

All (Owner/Builder) will be absolutely responsible for the conduct and behavior of their agents, representatives, Builders, contractors, and subcontractors within Riverbend.

The following are strictly prohibited:

- a. No overnight parking. All construction vehicles need to leave the site each evening.
- b. Changing oil on any vehicle or equipment on the Custom Home lot or at any other location within the properties.

- c. Smoking by construction workers outside the area designated for smoking. Designated smoking areas will be within the building envelope only. Builder shall provide fireproof receptacles for discarding matches and cigarettes. At least three 10-pound ABC-rated dry chemical fire extinguishers shall be present and available in a conspicuous place on each Custom Home lot's construction site at all times. The Community Association or its designee may conduct regular inspections of the extinguishers.
- d. Waste is not to go down storm drains. Builders shall not allow concrete suppliers, plasters, painters or any other subcontractors to clean their equipment anywhere but the location specifically designated for that purpose on the DHEC SWPPP checklist and permit documents. Violation of this provision will result in a fine or the repayment of expense of repairing the damage, whichever is greater. Such charges and expenses may be recovered through the owner as a Benefited Assessment.
- e. Removing any rocks, plant material, topsoil, or similar items from another's Custom Home lot, including other construction sites.
- f. Consumption of alcoholic beverages within the properties.
- g. Carrying any firearms within the properties.
- h. Using disposal methods or equipment other than those approved by the Community Association.
- i. Destruction or removal of protected plant materials or plants without Community Association's approval.
- j. Use of transit over common areas without the Community Association's consent, or over any neighboring properties without the owner's consent.
- k. Bringing children or animals onto the Properties by Builders or construction personnel. In the event of a violation, the Community Association shall have the right to contact authorities to impound the animal, to refuse to permit the Builder or subcontractor involved to continue on the project, or to take such other action as permitted by law, the Custom Home Design Guidelines, or the CC&Rs.
- l. Radios and other audio equipment that can be heard outside the construction site.
- m. No catering vehicles of any kind are permitted without the prior approval of the Community Association.
- n. Use of any Riverbend or private resident amenities or facilities or remain overnight.

6.11 Construction Access

The only approved construction access during the time a Custom Home or other improvement is under construction will be over the approved driveway for the Custom Home lot unless the Community Association approves an alternate access point. In no event shall more than one construction access route be permitted onto any Custom Home Lot. The Contractor shall use the closest surface road inside the development to the lot that they are working on. The Builder shall be responsible for assuring that only the above is used by its employees, suppliers, subcontractors and agents. Construction access must have stone, wood chips, and/or straw mats installed 2' deep and the width of the driveway to prevent dirt from tracking into the roadway.

6.12 Dust, Mud, and Noise

Each Builder shall be responsible for controlling dust, mud and noise, including without limitation, music from the construction site.

6.13 Construction Signage

Unless required by Governing Authorities, no construction signs may be posted anywhere on the properties, except that authorized by Community Association. The Builder may post one approved construction sign on a Custom Home lot at a location approved by the ARS.

The ARS must approve all signs before they are installed. If signs are installed prior to approval, the Community Association will have the signs removed.

Following are some signage suggestions:

- The sign should be horizontal and no larger than 24" by 30"; smaller is preferable.
- The total height of the sign and the post will be no more than 42" from the ground after installation.
- The sign may only be installed **after plans are approved** and within 30 days of the start of construction.
- Signage background is to be deep in color with a matching post (subtle earth colors are also acceptable).

- The text is limited to the builder's name and phone number. **No real estate, developer, or subcontractor signs are allowed.**
- The permit may be attached and clearly displayed on the front of the post. Blueprint tubes may be attached to the back, if desired.
- The builder must maintain the sign in good conditions or it will be removed by the Community Association.
- When the home is sold and closed on, the sign must be removed from the property. If the home is a spec, and complete, the sign must be removed.

7.0 LANDSCAPE GUIDELINES

7.1 Introduction

In Section 1.1 of the Custom Home Design Guidelines, the purpose of the ARS is explained for those who are not familiar. The landscaping requirements in this neighborhood are different than other parts of Sun City Hilton Head and surrounding communities. To avoid a review denial, it would be best to read these requirements, keeping in mind that when building in Riverbend, the Sun City Hilton Head Design Guidelines must be adhered to as well. Supply this guideline to your landscape designer so he/she is aware of the requirements. In new construction, at the time of trim carpentry, the landscape plans should be submitted so they may be reviewed and changed, if necessary, before occupancy. In all cases, landscaping is to be completed no later than 30 days after Beaufort County has issued a Certificate of Occupancy. One of the primary goals of Riverbend neighborhood is to minimize disturbance of the existing ecological systems and to preserve the site's unique vegetation. Landscape design for Custom Homes requires sensitivity to the architecture, site, natural features, and screening from adjacent Custom Home lots. While the Sun City Hilton Head Design Guidelines establish the broad goals and objectives for landscape in the Community, the following landscape Custom Home Design Guidelines are intended to provide additional standards for the Riverbend Custom Home lots.

7.2 Landscape Planning Concepts

Landscape is the most significant single component of Riverbend's identity because it establishes a "common thread" of strong visual and ecological environments throughout the entire community. Therefore, Riverbend's emphasis is on maintaining and enhancing open space and wildlife habitat, and reducing visual impact of new construction. This concept must be carried out on each Custom Home lot.

Around the edges of lagoons, a natural buffer zone in the 20' maintenance area should be developed to filter run-off from fertilizers and provide protection for wildlife. Plant life including invasive irises and water hyacinths should not be introduced to lagoons. Downspouts are not to directly empty into lagoons or salt marshes. When the Custom Home lot is on the salt marsh, the natural buffer zone, native grasses and vegetation must remain to protect the delicate nature of estuary. See the OCRM critical line Section 2.1, Part I of this document.

The preservation of existing trees and other native vegetation in the natural area of each Custom Home lot is encouraged and will be reviewed on a case-by-case basis in the landscape plan. Homeowners should also be aware that the location of existing trees, configuration of the Custom Home lot, and related site grading may impede or prevent construction of future improvements, especially swimming pools and other enhancements that require access by heavy equipment.

7.3 Planting Requirements

The Custom Home lots of Riverbend Neighborhood include three major landscape zones: Natural Areas, Transitional Areas, and Private Areas, as described in **Section 2.2 Custom Home Lot Zones**. **All trees over 6" in caliper, including native pine trees, must be marked approved by the Reviewing Body before removal.**

- a. The Natural Areas are the areas outside the Building Envelope. These areas shall remain undisturbed or shall be re-vegetated into their natural state. No statues, sculptures, depictions or artifacts will be permitted in the Natural or Transitional Areas.
- b. The Transitional Areas, adjacent to natural edges, should be limited to selected native specimen trees, shrubs and ground covers to harmonize with the existing forest materials and to stabilize the soil for control erosion.

- c. The Private Areas around the Custom Home shall include plant materials selected from the Approved Plant List. Seasonal annual beds are only acceptable for use within enclosed Private Areas. This includes courtyards but does not include Transitional Areas that are not enclosed. Seasonal annuals may also be used within pots or containers. Exception: Native annual species indicated on the Approved Plant List are acceptable for use in Transitional Areas. The addition of any plants requires ARS prior approval for plant type and proposed location. Removal of plants and other landscaping on any Custom Home lot must be approved by the ARS.
- d. All swale areas shall be sod or pine straw to facilitate water flow to drainage features. If the Custom Home lot is being finished adjacent to existing homes, match the plantings common to swale, utility, and wooded sections, where practical.
- e. Mulches are to be of natural colored materials. Red dyed barks, white gravel, concrete edging and colored decorative stones are not in keeping with the natural look of the Lowcountry and are not permitted. Pine straw, natural colored barks, and peat moss are permitted and encouraged to protect plants from loss of moisture. Only a single color and material of mulch shall be used per side of the house.
- f. Because of the sensitivity to impervious surfaces and run-off, artificial turf is not allowed. Plastic or artificial plants and flowers are not allowed except under porch roofs.
- g. As mentioned in the original construction guidelines, there are no platforms, private docks, or boat storage to be constructed on the lagoons, salt marshes or natural wetlands. Please see **Section 2.3.1 Alteration or Construction Adjacent to Salt Marsh Edge** for further clarification.

These Custom Home Design Guidelines include the Approved Plant List, as noted in the Sun City Hilton Head Design Guidelines that incorporates listings of recommended native species. Because it is difficult to list every acceptable plant material, the ARS will consider other plant materials upon request. The ARS reserves the right to refuse any plant material that, in its discretion, will not be compatible with the Riverbend neighborhood image or is not beneficial to the environment.

The Custom Home Owner shall be responsible for providing full landscaping in all areas within a period of 30 days from completion of home construction (Certificate of Occupancy). Landscape plans must be submitted and approved. All landscaping and landscaping plans shall comply with these and the Sun City Hilton Head Design Guidelines and also include the following:

- a. Minimum Plant Size/Type Ratios as follows:
 - i) Trees: Existing trees, in excess of six inches (6") total caliper, remaining on the Lot at closing may be considered to satisfy the minimum standards listed below.
 - Large Trees – 30-gallon size (shade, screening, and seasonal interest): 1 in front and 2 in back.
 - Small Trees – 15-gallon size (screening, flower, and seasonal interest): 1 in front and 1 in back.
 In addition to the guidelines stated above, all corner Lots shall have an additional two (2) trees, each 30 gallon. The front, rear and side yards of a corner Lot shall each contain a minimum of a 15-gallon and a 30-gallon tree. (Side yard facing the street.)
 - ii) Shrubs:
 - Large or Accent Shrubs – 7 or 5-gallon size (vertical accent, screening): one shrub per 400 square feet or overall Lot area.
 - Medium Shrubs – 5 or 3-gallon size (foundation planting, seasonal interest): one shrub per 225 square feet of overall Lot area.
 - Low Shrubs and Ground covers (low covering): one plant per 400 square feet of overall Lot area.
- b. A registered Landscape Architect shall prepare and submit to the Community Standards Department, all landscape plans unless a qualified Landscape Designer is approved by the ARS prior to the submittal.
- c. Due to existing natural vegetation on custom lots, it is not required that sodded area be 50%, but rather each Lot shall be judged on an individual basis.
- d. Owners are responsible for replacing failed plant materials, in a timely manner, at their own expense.

7.4 Irrigation

All elements of irrigation systems should be designed to minimize water usage through xeriscape practices.

- a. All landscape plantings shall be maintained by a fully automatic underground watering system that includes a rain sensor to shut off the system during periods of wet weather.
- b. When using sprinklers, care should be taken to avoid over spray on patios, sidewalks, streets and driveways ("hardscape"), structures, windows, and adjacent properties.
- c. Native vegetation does not require additional water. Therefore, irrigation of Natural Areas is not permitted (unless needed to establish restored areas as approved by the Reviewing Body). Irrigating these areas can lead to disease and death of the native plants, and aid in the spread of undesirable plant species or weeds.
- d. Mature trees that have been transplanted require irrigation for three to five years or until established. The irrigation watering schedule must be decreased over a two to three year period to condition the plant to a naturally occurring watering schedule.
- e. Other small native plant materials may be irrigated for a year or until established.
- f. It is critical that irrigation systems be monitored to avoid over-watering.
- g. A qualified Landscape Architect or horticulturist should assist with seasonal requirements for the plant materials and provide an irrigation schedule.
- h. Irrigation plans must be included in the landscape plan submitted to the Reviewing Body.
- i. It is encouraged that landscape irrigation installation be completed on the same schedule as home construction.

7.5 Walls and Fences

Walls and fences shall be compatible with the Custom Home architecture. All walls and fences shall comply with the Sun City Hilton Head Design Guidelines including the following:

- a. No alterations, changes or additions to walls shall be allowed without the prior written approval of the Reviewing Body.
- b. No courtyard wall (wall attached to home) shall be greater than 42" above finished grade elevation and must be contained within the Building Envelope.
- c. Freestanding walls shall not exceed thirty (30") inches in height and must be contained within the Building Envelope. Height is measured from finished grade along the exterior side (street side) of the enclosure.
- d. Wall surfaces shall be masonry, stucco, or stone.
- f. Masonry must be compatible with the existing masonry of the home.
- g. Walls shall be stuccoed and painted with a sand finished texture or a texture that matches that of the home.
- h. Stucco applied to wall surfaces shall completely cover all masonry joints and CMU block. A minimum of two (2) coat applications are required.
- i. Wrought iron must match existing wrought iron style of the home (color powder coat finish only).

7.5.1 Swimming Pool Security Fences

Pools and spas shall be fenced or contained in a screened enclosure for safety reasons. Fences shall be a minimum of 4 feet and a maximum of 6 feet in height. Permitted fencing materials are wrought iron, steel or aluminum painted black. The vertical members of the fence shall not be less than 2 ½ inches apart and not more than 4 ½ inches apart. Pool fences may also have a 2 foot high masonry or stucco base with masonry or stucco columns at spaced intervals. Pool fences shall either completely enclose the pool or be attached to the house. Wood and chain link fencing is not permitted. The pool fence shall not be extended beyond the immediate pool surround area to create perimeter fencing or encompass non-hardscape areas of the rear yard. Gates shall be the same material and height as the fence. Mature landscape plantings shall be placed outside of the perimeter of the fence to screen it from view.

7.6 Utilities and Trash

Garbage and trash must be stored in covered containers in the garage and/or service yard. Recycling containers may only be stored in the garage and shall be removed from the trash pick-up area on the same day that trash pick-up service is provided. Trash containers are subject to restriction in the initial CC&Rs.

All electrical transformers, cable TV junction boxes, telephone equipment, water connection boxes, and other related fixtures shall be properly screened and/or attractively landscaped with low walls, or shrub plantings. Firewood piles, mechanical equipment, and other outdoor maintenance and service facilities must be animal proof and properly screened from view from outside the Custom Home lot. Screening designs are subject to ARS approval. Firewood piles may not be covered with canvas or plastic tarps, or other such material. Clotheslines and all other types of outdoor clothes drying facilities are prohibited.

7.7 Barbecues, Fire Pits and Exterior Fireplaces

Permanent outdoor kitchens, barbecues, fire pits, and fireplaces are allowed if located within the Private Area of the Custom Home lot. All fire pits shall be gas fired, and be contained within the patio, a courtyard, or naturally landscaped area inside of the Building Envelope. Chimney elements shall be taller than six (6) feet. Application must include a complete drawing, a list, and sample with colors of the material used. If any electrical or plumbing elements are desired, they must be indicated along with their source and drainage arrangements. All required lines must be buried and in compliance with local codes. If these areas are lit, that lighting shall not constitute a nuisance to adjoining properties.

7.8 Fountains, Water Features and Decorative Ponds

These water features may be installed in Private Areas with location requiring submittal and approval by the ARS. Fountains shall be limited in height to 4 1/2' above the finished grade in the front yard and 6' in the rear yard of the Private Area and must be compatible with the architectural character of the community.

Decorative ponds may have a maximum depth of 1'6". The mechanics of these features are to be hidden from view by appropriate landscaping. Careful planning should result in the enhancement of the total design rather than the addition of artificial features, which must be limited in each of the Custom Home lots. While fish are an interesting addition to the water features, do be aware that there is an abundance of natural wildlife in Riverbend that will prove to be a threat.

7.9 Statues/Sculptures/Lawn Ornaments/Artifacts

Style and placement of ornaments such as statues, artifacts, landscape features and birdhouses/feeders shall be submitted to the ARS and will be reviewed on a case-by-case basis to be consistent with the overall aesthetic scheme of the neighborhood. Landscape features may not exceed 3' in height.

Homeowners should use discretion in the placement of ornaments and birdhouses/feeders on their property. No statues, sculptures, depictions or artifacts will be permitted in the Natural or Transitional Areas. Five (5) ornaments and three (3) birdhouses/feeders is the quantity limit. Birdhouses/feeders must be placed in rear yard only.

Pots, containers, raised planters and hanging baskets may be used within Private Areas. In situations where the front yard is not enclosed or there is not a courtyard, pots may be placed **immediately adjacent to the front entry**.

7.10 Yard Furniture

Yard furniture is permitted only in the rear yards. Formal decorative furniture will be allowed in the front planting beds or courtyards but must be reviewed and approved by the ARS.

When the property backs up to a common area or is seen from across a lagoon, care should be taken so any furniture, fire pits, pool accessories, or items mentioned in **Section 7.9 Statues/Sculptures/Lawn Ornaments/Artifacts** are not a distraction to the natural setting. Items in these areas should then be in natural coloration, non-reflective, and landscaped as to not impose a visual distraction.

7.11 Signage

All signs, including Custom Home lot address, shall comply with the requirements of the Sun City Hilton Head Design Guidelines.

7.12 Lighting

Sun City Hilton Head lighting designs intentionally minimize light pollution and the effect of manmade light on the natural surroundings. Maximum lumens is 1100 per fixture. All lighting additions shall minimize the light directed outside of the lot to avoid creating light nuisances or hazards for neighboring properties. All landscape fixtures, except front/rear elevation wall and post-mounted lamps shall use low wattage lamps and bulbs.

Maximum lumens is 300 per bulb with no more than 1100 lumens per fixture. Colored, blinking, or moving lights and LED/ROPE light chains are not allowed except as part of a specific holiday lighting display.

The design and location of all exterior lighting shall be indicated on the submitted landscape plan. Building perimeter lights must be installed to ensure the source of light is not visible from adjacent properties. Landscape lighting should also be subdued (low voltage/low wattage). If up-lighting and down-lighting is used, it should be subtle and the source hidden from view with no light shining to adjacent properties. All exterior floods are to be on motion sensors. Nuisance lighting that is brighter than the maximum 1100 lumens per fixture or in conflict with other residents and nature is strictly prohibited.

Shrubs shall be used to conceal landscape lighting fixtures. Junction boxes must be placed below grade to minimize daytime visibility of the hardware.

Colored lighting is not allowed with the exception of temporary holiday lighting (see **Section 7.13 Holiday Decorations** below).

7.13 Holiday Decorations

Temporary statues, artifacts, and other holiday decorative landscaping items are allowed within a reasonable period of time prior to, during, and after a holiday season. Decorations shall not cause audio or visual nuisances to their neighbors. Owner must comply with Community Association requirements.

7.14 Flagpoles

Freestanding flagpoles are not allowed in residential areas. Homeowners may use approved brackets mounted on the front elevation of the Custom Home to display flags. No flag may extend so that the end protrudes more than four (4) feet from the exterior wall of a home to which it is attached. Not more than 2 flags may be displayed at the front of each home.

7.15 Recreational Vehicle Storage

Recreational vehicle storage is regulated by the Community Association and is prohibited on individual Custom Home lots except within enclosed garages and for temporary loading and unloading.

7.16 Recreational Facilities

Permanent basketball hoops and/or courts are not permitted in Custom Home lots.

Riverbend has a private community dock that is shared with all Sun City Hilton Head residents. All residents use it for fishing, crabbing, shrimping, kayaking, and observation. There is no long term docking of any recreational boats or personal watercraft, as the fishing facility must be available at all times and space is limited. This is a ticketed offense. There is no overnight docking. When using this facility, do follow the posted rules and procedure for cleaning the dock after fishing.

7.17 Animal Enclosures

Dog runs and animal pens are prohibited. Owners are required to have their pets leashed at all times when outside their owner's property and comply with all the Beaufort County Animal Regulations. Residents are encouraged to use the Sun City Hilton Head dog parks and/or to install invisible fencing. Farm animals and pens for small animals are prohibited.

APPLICATION FOR LANDSCAPE PLAN REVIEW

Review Process Summary & Checklist

Please Note:

- It is strongly recommended that landscape plans be submitted for review no later than by dry in stage so that they may be reviewed and changed, if necessary, before occupancy.
- Landscaping is to be completed no later than 30 days after Beaufort County has issued a Certificate of occupancy.

Date of Application _____

Lot Number _____

Owner Information:

Landscaper Information:

OWNER'S NAME

NAME OF LANDSCAPER

PHONE NUMBER

PHONE NUMBER

MAILING ADDRESS

LANDSCAPER MAILING ADDRESS

CITY STATE ZIP

CITY STATE ZIP

E-MAIL ADDRESS

E-MAIL ADDRESS

Landscape Submittal:

- ☐ Complete landscape plans (2 sets) including PDF
- ☐ Grading and drainage plans
- ☐ Plans for walls, fences, exterior fireplaces, or any further exterior construction
- ☐ Plans for pools and/or lanais, if any
- ☐ Water features
- ☐ Lighting plans

Submit Applications to:

**Sun City Hilton Head Community Association
Architectural Review Subcommittee
Community Standards Department
127 Sun City Lane
Bluffton, SC 29909**

RIVERBEND APPLICATION FOR NEW HOME PLAN REVIEW

Have any plans previously been submitted for this project? Please check one ☐ Yes ☐ No

Application submittal

- ☐ **Completed application form**
- ☐ **\$5,000** Riverbend ARS plan review fee. Check made payable to Sun City Hilton Head Community Association.
- ☐ \$5,000 escrow compliance fee. Check made payable to Sun City Hilton Head Community Association.
- ☐ \$3,000 builder escrow compliance fee (**This compliance fee may be paid only by the Builder**). Check made payable to Sun City Hilton Head Community Association.
- ☐ \$2,000 landscape contractor escrow compliance fee. Check made payable to Sun City Hilton Head Community Association
- ☐ Current copy of South Carolina builder's license
- ☐ Current copy of Beaufort County business license

Design submittal conceptual___ preliminary___ final___

(2 full-size copies and 1PDF electronic copy for each submittal)

- ☐ Survey of lot and tree/plant locations
- ☐ Site plan
- Heated square footage first floor _____ second floor _____ other _____
- Overall roof height from undisturbed grade _____
- ☐ Floor plan
- ☐ Roof plan
- ☐ Exterior elevations
- ☐ Building sections
- ☐ Exterior material plan and color schemes on color board form
- ☐ Color selection indicated on 1 exterior elevation – all sides
- ☐ Location of exterior surface-mounted lights and cut sheets
- ☐ Landscape and drainage plans – required during final review

Final approval, prior to tree removal and construction

Stake out the lot completely, including building footprint, driveway, property corners, and setbacks as well as the trees marked for proposed removal.

Notify the ARS when the staking is complete and ready for review. **DATE APPROVED** _____

The undersigned hereby acknowledges receipt of the Custom Home Design Guidelines for Riverbend and by signing below agrees to be bound by and comply with such guidelines. Owner/builder acknowledges that fines may be levied as described in the Sun City Hilton Head Schedule of Fees for failure to adhere to these guidelines. It is hereby understood and agreed that approval of this application does not constitute approval as to compliance with applicable South Carolina or Beaufort County ordinances.

Lot owner	Date
-----------	------

Contractor/builder	Date
--------------------	------

Architect/designer
Date

Submit application to Riverbend ARS

**Safety and Standards Office
Palmetto Commons
127 Sun City Lane
Bluffton, SC 29909**

GLOSSARY

Any capitalized terms used in these Custom Home Design Guidelines which are not defined in this document shall have the same meaning as described in the CC&Rs.

Unless the context otherwise specifies or requires, the following words or phrases in the Custom Home Design Guidelines shall have the following specific meanings:

BUILDER: A person or entity engaged by an Owner for the purpose of constructing any Work within the Properties. The Builder and Owner may be the same person or entity.

BUILDING LIMIT: A specifically defined portion of the Custom Home lot, as shown in the “Building Envelopes,” which depicts building area limits and setbacks for each floor and the relationship between the floors of any Custom Home.

CONSULTANT: A professional, such as a licensed South Carolina architect, contractor, builder, home designer, civil engineer or landscape architect that serves in a capacity of advising the ARS on the technical aspects of each submittal.

CUSTOM HOME: The building or buildings, including any garage, used for residential purposes on a Custom Home lot, and any improvements constructed in connection therewith. Custom Home shall include a “Dwelling Unit” as defined in the CC&Rs.

CUSTOM HOME LOT: A portion of the properties, whether improved or unimproved, which may be independently owned and conveyed and which is intended for development, use, and occupancy as a Custom Home for a single family.

DESIGN GUIDELINES: A set of standards to be adhered to when building new or modifying an existing building within Sun City Hilton Head.

EXCAVATION: Any disturbance of the surface of the land (except to the extent reasonably necessary for planting or removal of approved vegetation), including any trenching which results in the removal of earth, rock, or other substance from a depth of more than 12" below the natural surface of the land or any grading of the surface.

FILL: Any addition of earth, rock, or other materials applied to the surface of the land, which increases the natural elevation of such surface.

GOVERNING AUTHORITY: Beaufort County, South Carolina, OCRM, Army Corp of Engineers, and/or other applicable governmental authorities.

NATURAL AREA: That portion of the area outside of the Building Envelope, which must remain undisturbed.

OPEN SPACE: All land, improvements, and other properties now or hereafter designated as such on the Plat, in the CC&Rs or in any Supplemental Declaration.

PLAT MAP: The Final Plat of Riverbend as recorded or to be recorded in the Office of the County Recorder of Beaufort County, South Carolina.

PRIVATE AMENITY: Any recreational or related purpose facility, which is owned and operated by Persons other than Del Webb Communities, Inc. /Sun City Hilton Head.

PRIVATE AREA: The area within a Custom Home lot as defined by its property lines and right-of-way, including any areas adjacent to, and as delineated by, any building or structure located on the Custom Home lot.

PROPERTIES: All of the real property subject to the CC&Rs. “Riverbend” shall refer to the properties, as well as other real property shown on the final plat for Riverbend.

REVIEWING BODY: The Community Standards Department and/or consultants, or the ARS established pursuant to the CC&Rs, as applicable.

SIGNIFICANT SPECIMEN TREES: Trees (including native pines) of 6" or greater trunk caliper – namely, oak trees and other slow-growing hardwood species (such as black cherry, white oaks, dogwoods, hickory, maple, cedar) and very large, full-headed pine trees.

STRUCTURE or IMPROVEMENT: Anything constructed, erected, or installed on a Custom Home lot.

TRANSITIONAL AREA: The area between any Private Area and any Natural Area which serves as a means of adapting different landscape character zones.

WORK: Any construction, placement, or installation of a Custom Home, or other Improvement, including staking, clearing, excavation, grading or other site work, exterior alteration, modifications to existing improvements, and the installation and removal of landscaping materials.

This document is the property of
Sun City Hilton Head Community Association
under the Covenants, Conditions, and Restrictions.

It is not intended for distribution other than
to provide information for Riverbend homeowners
considering modifications to their homes or lots.

It may only be changed or altered by the
Sun City Hilton Head Community Association
Board of Directors.

Rev. **January 2025**